

CHAPTER W-16 - PARKS AND WILDLIFE PROCEDURAL RULES

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CHAPTER W-16 - PARKS AND WILDLIFE PROCEDURAL RULES

ARTICLE I - Meetings

#1601 - Conduct of Meetings

See Article 4 of Title 24, CRS, for rule making and other applicable meeting and hearing requirements

A. Regular Meetings

1. Public Presentation - In addition to normally scheduled opportunities to testify on matters before the Commission, persons or groups wishing to participate in a regular Commission meeting may request to be placed on the agenda by submitting a written request to the Chair through the Commission inbox (dnr_cpwcommission@state.co.us) at least 30 days before the meeting. The public may participate during the meeting at the discretion of the Chair or presiding officer.

B. Adjudicatory Hearings

1. Review of Game Damage Settlements and Claim Denials

See §§ 33-3-101 to 204, CRS, for additional detail and requirements

a. Game Damage Claims Settled by Agreement Between Claimants and the Division

- 1) Only settlements of game damage claims equaling or exceeding \$5,000 in total value must be reviewed by the Commission, and then only where the damage is something other than forage loss to wild ruminants on privately owned or leased private land. All other settlements may be paid by the Division without Commission review.
- 2) Review will be based on the written materials and documentary evidence provided to the Commission by the Division and, unless the Commission directs otherwise, there will be no oral presentations or further submittals to the Commission on the settlement.
- 3) Except as may otherwise be directed by the Commission, game damage settlements will be reviewed at the next regular meeting of the Commission following their receipt, provided the settlement, together with its supporting materials and documentation, is received by the Commission at least thirty days prior to the meeting. The settlement will be placed on the consent agenda unless the claimant makes an oral presentation to the Commission pursuant to #1601.A.1.

b. Game Damage Claims Recommended for Denial by the Division

- 1) Any claimant seeking or otherwise requiring Commission review of a game damage claim recommended for denial by the Division, or a game damage claim where the claimant and the Division have otherwise failed to reach a settlement, shall file a written request for review with the Commission. The requirement for a written request for review applies to all claimants, including claimants that have waived arbitration of a forage loss to wild ruminants on privately owned or leased private land. Such request for review shall be mailed to the Commission within ten (10) days of claimant's receipt of the Division's written notice of denial or offer of settlement unacceptable to the claimant.
- 2) The request for review shall include:
 - a. the claimant's name, address and telephone number;

- b. a narrative statement of the claim, including the amount at issue and a complete statement of the factual and statutory basis supporting payment of the claim as requested;
 - c. copies of the ten (10) day notification(s) and proof of loss filed with the Division;
 - d. copies of the written documentation submitted with, and in support of, the proof of loss;
 - e. any other documentary evidence supporting the claim or disputing the grounds stated as the basis for the Division's action in its notice of denial or offer of settlement, including photographs, and;
 - f. any other written materials supporting the claim or disputing the grounds stated as the basis for the Division's notice of denial or offer of settlement, including signed statements by third party witnesses.
- 3) Commission review will be based on the request for review and any written materials or documentary evidence provided to the Commission by the Division in response to the request for review submitted by the claimant, and unless the Commission directs otherwise, there will be no oral presentations or further submittals to the Commission.
 - 4) Except as may otherwise directed by the Commission, such claims will be reviewed at the next regular meeting of the Commission following their receipt, provided the request for review is received by the Commission at least thirty days prior to the meeting. The denial will be placed on the consent agenda unless the claimant makes an oral presentation to the Commission pursuant to #1601.A.1.

2. License Suspension Appeals

See § 33-6-106, CRS for additional detail and requirements

- a. All license suspensions will be heard initially and decided by a Commission hearing examiner. A copy of the hearing examiner's initial decision shall be sent to the licensee by certified mail, return receipt requested, to the last known address of such person. The hearing examiner's initial decision shall advise the licensee of their right to appeal the initial decision to the Commission. Any person seeking or otherwise requiring Commission review of the hearing examiner's initial decision shall file a written notice of appeal within 45 days from the date contained in the certificate of service accompanying the initial decision. The notice of appeal must be sent to "CPW License Appeals" 6060 Broadway, Denver, CO 80216. If a timely appeal is not made to the Commission, the hearing examiner's initial decision shall become final, effective 45 days from the date contained in the certificate of service accompanying the initial decision. If a timely appeal is made to the Commission, the hearing examiner shall send notice to the licensee of the date of their scheduled hearing before the Commission and advise that the hearing examiner's initial decision to suspend is automatically stayed pending Commission review and final action.
- b. The notice of appeal shall include:
 - 1) the person's name, address, telephone number and case file number;
 - 2) a narrative statement of the person's position, including a complete statement of the factual and statutory basis supporting relief from the decision of the hearing examiner and the relief requested;
 - 3) copies of any written documentation or documentary evidence submitted to the hearing examiner;

- 4) copy of the hearing examiner's decision, including the findings of fact and conclusions of law, and;
 - 5) a copy of the transcript of the hearing on the suspension of license privileges conducted by the hearing examiner. The person requesting review shall be responsible for the production of the transcript.
- c. Commission review will be based on the notice of appeal and any additional written materials and documentary evidence provided to the Commission by the hearing examiner in response to the notice of appeal, and unless the Commission directs otherwise, there will be no oral presentations or further submittals to the Commission.
 - d. Except as may otherwise be directed by the Commission, license suspensions will be reviewed at the next regular meeting of the Commission following their receipt, provided the notice of appeal is received by the Commission at least thirty days prior to the meeting. The appeal will be placed on the consent agenda unless the licensee makes an oral presentation to the Commission pursuant to #1601.A.1. The final decision of the Commission is effective upon mailing to the licensee and must contain a certificate of mailing.
 - e. Written notice of the final decision of the commission shall be sent to the licensee by certified mail to the last known address of such person. The notice shall advise the licensee that he or she may appeal the Commission's suspension decision to the state district court as provided in § 24-4-106, C.R.S., by bringing an action for judicial review within 35 days after such action becomes effective.
 - f. When deciding upon the duration of any license privileges suspension term, the hearing examiner will consider the facts of the underlying violation(s) giving rise to the criminal conviction(s) and the administrative license suspension hearing, along with all relevant written materials and documentary evidence contained in the Division's records, all written materials and documentary evidence provided by the party prior to the administrative license suspension hearing, and all evidence provided during the hearing, and will give specific consideration to the absence or presence of the following factors:
 - 1) Whether the violation(s) caused or resulted in the take of wildlife, injury or death of a person, or damage to or destruction of public or private property;
 - 2) The number of violations arising from the same transaction or occurrence;
 - 3) Whether the violation(s) involved the take of species listed as endangered, threatened or of special concern;
 - 4) Whether the violation(s) involved the take of trophy wildlife;
 - 5) Whether the violation(s) showed an intentional, knowing, or negligent disregard for wildlife or public safety;
 - 6) Whether the violation(s) involved intentional, knowing or negligent action on behalf of the party;
 - 7) Whether the party has any prior violations of wildlife statutes or regulations, or violations of state or federal law committed while hunting, fishing, or engaging in a related activity;
 - 8) Whether the party has any prior license suspensions;
 - 9) Whether the violation(s) occurred while the party was subject to a prior suspension or otherwise unlicensed;

- 10) Whether the violation(s) involved any assault or threat to or resisting a peace officer;
- 11) Whether the party self-reported the violation(s) or otherwise attempted to remedy or ameliorate the harm caused by the violation(s);
- 12) The experience and age of the party and other social factors or circumstances associated with the violation(s);
- 13) Whether the party interfered with or hindered the investigation of the violation(s);
- 14) The criminal penalties imposed as part of the violation(s);
- 15) Whether the party acted alone or in concert with other parties;
- 16) The species and the number of wildlife taken, and;
- 17) Whether the violation(s) involved any specified illegal manner of take (use of bait, traps, snares, poison, etc.).

Based on all the evidence presented, the hearing examiner will determine the weight to be given to any factor and that factor's effect on the duration of the suspension term.

3. Mid-Suspension Review

- a. Except as specified in subsection b. of this regulation, any person who has had their privilege of applying for, purchasing, or exercising the benefits conferred by any or all licenses issued by the division pursuant to articles 1 to 6 of title 33 ("license privileges") may file a petition for mid-suspension review seeking to modify the expiration date of their suspension. Such petitions may be filed once every five years either:
 - 1) After half of a suspension of at least 20 years, but less than a lifetime, has elapsed; or
 - 2) After fifteen years of a lifetime suspension have elapsed.
- b. Applicability
 - 1) Any person who has had their license privileges suspended by the commission for less than 20 years may not file a petition for mid-suspension review.
 - 2) Any person who has had their license privileges suspended by the commission on two or more occasions may not file a petition for mid-suspension review.
 - 3) Any person who has been convicted of wildlife violations of another state, or any Canadian province, United States territory, or federal agency which is a member of the "Wildlife Violator Compact," §§ 24-60-2601 – 2604, CRS, since the date of the hearing examiner's initial decision entered pursuant to § 33-6-106(7), CRS, may not file a petition for mid-suspension review.
 - 4) Any person who has been charged with wildlife violations of another state, or any Canadian province, United States territory, or federal agency which is a member of the "Wildlife Violator Compact," §§ 24-60-2601 – 2604, CRS, since the date of the hearing examiner's initial decision entered pursuant to § 33-6-106(7), CRS, may not file a petition for mid-suspension review until such charges are finally resolved.
- c. Contents of petition for mid-suspension review and course of proceedings

- 1) The petition for mid-suspension review must include an affidavit signed by the petitioner under penalty of perjury stating:
 - a. The petitioner has not had their license privileges suspended by the commission on two or more occasions;
 - b. The petitioner has not been convicted of wildlife violations of another state, or any Canadian province, United States territory, or federal agency which is a member of the "Wildlife Violator Compact," §§ 24-60-2601 – 2604, CRS, since the date of the hearing examiner's initial decision entered pursuant to 33-6-106(7), CRS; and,
 - c. There are no pending charges against the petitioner for wildlife violations of another state, or any Canadian province, United States territory, or federal agency which is a member of the "Wildlife Violator Compact," §§ 24-60-2601 – 2604, CRS.
- 2) The petition for mid-suspension review must include a detailed justification for the request. Time served on the suspension, and/or financial penalties incurred do not constitute good cause for modifying the expiration date of any suspension.
- 3) The petition for mid-suspension review must demonstrate the petitioner's ongoing and concerted efforts to ameliorate the harm caused by their violation(s) in the form of education, mentoring, volunteering, wildlife conservation efforts, or other means.
- 4) The division may file a response to the petition. Unless the commission directs otherwise, there will be no oral presentations or further submittals to the commission and the petition will be placed on the consent agenda with an appropriate recommendation by the Director.
- d. Standard of review: The commission, in its discretion, may modify the duration of a previously-imposed license suspension if the petitioner proves the duration of their original suspension no longer serves the remedial purpose of protecting the state's wildlife. The commission shall consider the totality of the circumstances, which include, but need not be limited to, the following factors:
 - 1) The credibility of the petitioner's written statements or testimony, if any;
 - 2) The credibility of written statements by third parties;
 - 3) The adequacy of petitioner's ameliorative efforts;
 - 4) The risk of future wildlife offenses; and,
 - 5) Aggravating or mitigating factors leading to the original suspension.

4. Review of Petitions for Declaratory Orders

See §§ 24-4-105(11), CRS for additional detail and requirements

- a. Any person may petition the Commission for a declaratory order to terminate a controversy or to remove uncertainty as to the applicability to the petitioner of any statutory provision or any rule or order of the Commission.
- b. The petition must be in writing and shall include:
 - 1) the petitioner's name, address and telephone number;

- 2) the statutory provision, rule or order at issue;
 - 3) a narrative statement of all facts necessary to show the nature of the controversy or uncertainty and the manner in which the statutory provision, rule or order applies or potentially applies to the petitioner;
 - 4) whether the petitioner holds any permits, passes, or registrations issued pursuant to Articles 10 through 15 of Title 33, C.R.S., as amended.
- c. The Commission will determine, in its discretion and without notice to the petitioner, whether to rule upon the petition. In determining whether to rule upon a petition filed pursuant to this regulation, the Commission will consider the following matters, among others:
- 1) Whether a ruling on the petition will terminate a controversy or remove uncertainties as to the applicability to the petitioner of any statutory provision or of any regulation of the Commission.
 - 2) Whether the petition involves any subject, question or issue which is the subject of a formal or informal matter or investigation currently pending before the Commission or a court involving one or more of the petitioners.
 - 3) Whether the petition involves any subject, question or issue which is the subject of a formal or informal matter or investigation currently pending before the Commission or a court but not involving the petitioner.
 - 4) Whether the petition seeks a ruling on a moot or hypothetical question or will result in an advisory ruling or opinion.
 - 5) Whether the petitioner has some other adequate legal remedy, other than an action for declaratory relief pursuant to Rule 57, Colorado R. Civ. P., which will terminate the controversy or remove any uncertainty as to the applicability to the petitioner of the statute, regulation, or order in question.
- d. Commission review, if any, will be based on the petition and any additional written materials and documentary evidence provided to the Commission by the Division in response to the petition, and unless the Commission directs otherwise, there will be no oral presentations or further submittals to the Commission.
- e. Except as may otherwise be directed by the Commission, petitions for declaratory orders will be reviewed at the next regular meeting of the Commission following their receipt, provided the petition is received by the Commission at least thirty days prior to the meeting.
- f. If the Commission determines that it will rule on the petition, the following procedure will apply:
- 1) The Commission may rule upon the petition based solely upon the facts presented in the petition. In such a case:
 - i. Any ruling of the Commission will apply only to the extent of the facts presented in the petition and any amendment to the petition.
 - ii. The Commission may order the petitioner to file a written brief, memorandum or statement of position.
 - iii. The Commission may set the petition, upon due notice to petitioner, for a non-evidentiary hearing.

- iv. The Commission may dispose of the petition on the sole basis of the matters set forth in the petition.
 - v. The Commission may request the petitioner to submit additional facts in writing. In such event, such additional facts will be considered as an amendment to the petition.
 - vi. The Commission may take administrative notice of the facts pursuant to the State Administrative Procedure Act and may utilize available experience, technical competence and specialized knowledge in the disposition of the petition.
 - vii. If the Commission rules upon the petition without a hearing, it shall promptly notify the petitioner of its decision and the reasons for such action.
- 2) The Commission may, in its discretion, set the petition for hearing, upon due notice to the petitioner, for the purpose of obtaining additional facts or information or to determine the truth of any facts set forth in the petition or to hear oral argument on the petition. The notice to the petitioner setting such hearing shall set forth, to the extent known, the factual or other matters into which the Commission intends to inquire. For the purpose of such a hearing, to the extent necessary, the petitioner shall have the burden of proving all of the facts stated in the petition, all of the facts necessary to show the nature of the controversy or uncertainty and the manner in which the statutory provision, rule or order in question applies or potentially applies to the petitioner and any other facts the petitioner desires the Commission to consider.
- g. The parties to any proceeding pursuant to this regulation shall be the division and the petitioner. Any other person may seek leave of the Commission to intervene in such a proceeding, and leave to intervene will be granted at the sole discretion of the Commission. A petition to intervene shall set the same matters as required by # 600-4. Any reference to "petitioner" in this regulation also refers to any person who has been granted leave to intervene by the Commission.
 - h. Any declaratory order or other order disposing of a petition pursuant to this regulation shall constitute final agency action subject to judicial review pursuant to section 24-4-106, C.R.S.
5. Landowner Preference Program (LPP) Disqualification Hearings and Appeals
- a. If a landowner, the landowner's agent, or hunter fails to comply with § 33-4-103, CRS or any of its implementing regulations, the Division may disqualify such person (the "Respondent") from participating in the LPP for up to five years. Disqualification proceedings will be heard initially and decided by a Commission hearing examiner. Respondents shall be given the opportunity to appear and show cause why they should not be disqualified from participating in the LPP. A copy of the hearing examiner's initial decision shall be sent to the Respondent by certified mail, return receipt requested, to the last known address of such person. The hearing examiner's initial decision shall advise the Respondent of their right to appeal the initial decision to the Commission. Any person seeking or otherwise requiring Commission review of the hearing examiner's initial decision shall file a written notice of appeal with the Commission no later than 45 days from the date contained in the certificate of service accompanying the initial decision. The notice of appeal must be sent to "CPW License Appeals" 6060 Broadway, Denver, CO 80216. If a timely appeal is not made to the Commission, the hearing examiner's initial decision shall become final, effective 45 days from the date contained in the certificate of service accompanying the initial decision. If a timely appeal is made to the Commission, the hearing examiner shall send notice to the Respondent of the date of their scheduled hearing before the Commission and advise that the hearing examiner's initial decision to

disqualify is automatically stayed pending Commission review and final action.

- b. The notice of appeal shall include:
 - 1) the Respondent's name, address, telephone number and case file number;
 - 2) a narrative statement of the Respondent's position, including a complete statement of the factual and statutory basis supporting relief from the decision of the hearing examiner and the relief requested;
 - 3) copies of any written documentation or documentary evidence submitted to the hearing examiner;
 - 4) copy of the hearing examiner's decision, including the findings of fact and conclusions of law, and;
 - 5) a copy of the disqualification hearing transcript. The Respondent requesting review shall be responsible for the production of the transcript.
- c. Commission review will be based on the notice of appeal and any additional written materials and documentary evidence provided to the Commission by the hearing examiner in response to the notice of appeal, and unless the Commission directs otherwise, there will be no oral presentations or further submittals to the Commission.
- d. Except as may otherwise be directed by the Commission, LPP disqualification appeals will be reviewed at the next regular meeting of the Commission following their receipt, provided the notice of appeal is received by the Commission at least thirty days prior to the meeting. The appeal will be placed on the consent agenda unless the Respondent makes an oral presentation to the Commission pursuant to #1601.A.1. The final decision of the Commission is effective upon mailing and must contain a certificate of mailing.
- e. Written notice of the final decision of the Commission shall be sent to the Respondent by certified mail to the last known address of such person. The notice shall advise the Respondent that they may appeal the Commission's disqualification decision to the state district court as provided in § 24-4-106, C.R.S., by bringing an action for judicial review within 35 days after such action becomes effective.
- f. When deciding upon the duration of any disqualification term, the hearing examiner will consider the facts of the underlying violation(s) giving rise to the criminal conviction(s) and the administrative disqualification hearing, along with all relevant written materials and documentary evidence contained in the Division's records, all written materials and documentary evidence provided by the Respondent prior to the administrative disqualification hearing, and all evidence provided during the hearing, and will give specific consideration to the absence or presence of the following factors:
 - 1) Were warnings issued or other educational attempts made previously?
 - 2) Were the violations committed mistakenly, knowingly, or intentionally?
 - 3) Were there prior LPP violations committed and/or prior disqualifications?
 - 4) Was there any compensation or other consideration exchanged for the LPP vouchers?
 - 5) Did the LPP violation result in additional wildlife violations and/or the take of wildlife?
 - 6) Was the Respondent acting in concert with others?

- 7) Did the Respondent hinder the investigation or attempt to conceal the violations in any way?

Based on all the evidence presented, the hearing examiner will determine the weight to be given to any factor and that factor's effect on the duration of the disqualification term.

6. All Other Adjudicatory Hearings

See §§ 24-4-105 and 33-1-111, CRS for additional detail and requirements

- a. Unless the Commission directs otherwise, all other adjudicatory matters within the jurisdiction of the Commission will be heard initially and decided by an administrative law judge within the Division of Administrative Hearings.
- b. Any person requesting an adjudicatory hearing on a matter within the jurisdiction of the Commission shall file a written request for a hearing with the Commission.
- c. The request for an adjudicatory hearing shall include:
 - 1) the person's name, address and telephone number;
 - 2) a narrative statement of the person's position, including a complete statement of the factual basis and legal justification for any relief requested;
 - 3) copies of any written documentation or documentary evidence supporting the person's position;
- d. Except as may otherwise be directed by the Commission, requests for adjudicatory hearings will be reviewed at the next regular meeting of the Commission following their receipt, provided the request is received by the Commission at least thirty days prior to the meeting.
- e. The person will be notified of the assignment of the matter to the Division of Administrative Hearings or whether the Commission will hear the matter itself.
- f. All further proceedings will be conducted in accordance with §§ 24-4-105, CRS

ARTICLE II - Implementation of HB1158

#1602 - Purpose and Scope

These rules govern administrative proceedings pursuant to the Commission's obligations under House Bill 1158 as described by Section 37-60-122.2 CRS and Section 5 of Chapter 266, Session Laws of Colorado 1987. This Act, dated July 13, 1987, directs the Wildlife Commission (Commission) and the Water Conservation Board (Board) or the Governor to determine an official State position on a wildlife mitigation plan submitted by an applicant proposing to construct, operate or maintain a water project requiring federal approval. It also establishes State grants to assist in paying for wildlife mitigation and/or enhancement measures. These rules are written to be compatible with the Board's "Rules and Regulations for the Implementation of Colorado's Fish and Wildlife Mitigation and Enhancement Grant Program."

These rules apply to all actions required by and taken pursuant to Section 37-60-122.2 CRS, (1984 and 1987 Supp.) and Section 5 of Chapter 266, Session Laws of Colorado 1987.

These rules apply to all applicants who file an application for, or receive a permit for, a proposed water project on or after July 13, 1987.

These rules do not apply to the Animas-La Plata Project, the Two Forks Dam and Reservoir Project, the Homestake Water Project or to any project which is eligible for a nationwide permit pursuant to Section 404 of the Federal Clean Water Act or to any project, except reservoirs, which requires an individual permit pursuant to Section 404 of the Federal Clean Water Act unless the applicant elects to submit a wildlife mitigation or enhancement plan.

These rules do not apply to actions concerning or carrying out other statutory responsibility of the Commission.

#1603 – Definitions

- A. Applicant** means any person or entity proposing to construct a water diversion, delivery or storage facility in the state of Colorado requiring an application for a permit, license, or other approval from the United States.
- B. Approval** means any form of approval which is required from the United States prior to the construction of a project.
- C. Board** means the Colorado Water Conservation Board.
- D. Commission** means the Colorado Parks and Wildlife Commission.
- E. Construction Costs** means the best estimate of the physical construction costs of the project as fixed by the Board as of the date of the grant application. Costs are limited to design, engineering and physical construction and will not include the costs of planning, financing, and environmental documentation, mitigation costs, legal expenses, site acquisition or water rights.
- F. Construction Fund** means the Board's construction fund as established by Section 37-60-121, CRS.
- G. Division** means the Colorado Division of Parks and Wildlife and, when necessary, it may be construed as referring to the Commission.
- H. Enhancement** means the improvement of the total value of fish and wildlife resources affected by the project beyond that required by mitigation and beyond that which would occur without the project.
- I. Enhancement Grant** means a sum of money or other remuneration awarded to the applicant by the Board, to pay for the State's contribution to the implementation of an enhancement plan.
- J. Enhancement Plan** means a document describing the measures to be completed by the applicant which will enhance fish and wildlife resources beyond that which would occur without the project. It includes a cost estimate for the implementation of the plan and a schedule for completion.
- K. Fish and Wildlife Resources Account** means the account established in the Board's Construction Fund to provide funding for mitigation and enhancement grants.
- L. License** means any license which is required from the United States prior to the construction of a project.
- M. Mitigation** means any action or measures taken to address undesirable project impacts on fish and wildlife resources which may be accomplished in several ways, including reducing, minimizing, rectifying, compensating, or avoiding impacts.
- N. Mitigation Grant** means a sum of money or other remuneration awarded to the applicant by the Board to pay for the State's contribution to the implementation of a mitigation plan.

- O. Mitigation Plan** means a document describing the measures to be completed by the applicant which will mitigate losses to fish and wildlife resources resulting from the project. It includes a cost estimate for the implementation of the plan and a time schedule for completion.
- P. Notice** means the date the Division receives documents required of an applicant for a mitigation plan.
- Q. Permit** means any permit, other than a nationwide 404 permit, which is required from the United States prior to the construction of a project.
- R. Project** means a water diversion, delivery, or storage facility or facilities, and any combination thereof, together with all associated and appurtenant project works.
- S. Water diversion, delivery or storage facility** means any structure or structures built for the purpose of diverting or transporting water from a stream, lake or reservoir, on or off channel, to any type of a supply system, or any structure built for the purpose of storing water for subsequent application to beneficial use.

#1604 - Procedures for Arriving at an Official State Position on Mitigation

A. Requirement of Applicants

1. An applicant proposing to construct a water project requiring an application for a federal permit, license, or other approval as described in #1602 shall advise the Division and the Board, in writing, within five working days of submission of an application for federal permit, license or other approval, and provide each agency with a copy of the application and all materials cited in, referenced in, or submitted with the application.
2. When the applicant has prepared a wildlife mitigation plan which is ready for Commission evaluation, the applicant shall give notice to the Commission by submitting 15 copies of the plan to the Division, five of which are to be submitted to the appropriate Division Regional office and ten to the Denver headquarters office; and 15 copies to the Board. The following information shall be prepared within the time sequence and framework of established federal environmental impact review requirements. The mitigation plan shall include:
 - a. A description of the project.
 - b. An estimate of construction costs.
 - c. An assessment of the fish and wildlife resources impacted by the project, measures to mitigate the losses to fish and wildlife resources, a time schedule, and the costs and benefits of the plan.
 - 1) A wildlife impact assessment identifies, predicts the direction and magnitude of, and evaluates and communicates the significance of a project as it affects wildlife. The assessment is dependent upon baseline data that provides an overview of the wildlife resources and related conditions as they currently exist in the area. It also provides a basis for analyzing and determining the extent and scope of project impacts, or its alternatives, to wildlife. The assessment is an integral part of the environmental impact assessment process and is not intended to be separate from or beyond the scope of that process.
 - 2) Decisions regarding such things as study design, period of study, and responsibility for data collection and costs should be approached on a case by case basis and agreed to through interagency review at the initiation of the environmental assessment process.

- 3) The wildlife impact assessment and recommendations for mitigating losses will be based upon a systematic evaluation of fish and wildlife resources and habitats using the best available scientific information and professional judgment. The plan will contain an estimated cost and assignment of development, operation and maintenance of the mitigation measures and a monitoring plan.
- 4) Where possible, impacts to wildlife and habitat will be separated into the following categories: direct and indirect; on-site and off-site; public lands and private lands; and cumulative impacts. In the disclosure of predicted impacts, each category may have separate mitigation measures associated with it, which when assembled make up a mitigation plan.
- 5) Normally, mitigation should occur concurrently with or prior to project development, be proportional to impacts, and last for the entire period in which impacts to wildlife resources persist as federal, state and local laws and regulations provide.

B. Commission Action

1. Upon receipt of all the information required in #1604.A.2. the Division will respond, within ten working days, to the applicant with a written acknowledgment that the necessary documents have been received. The date of receipt by the Division is the official date of notice to the Division and the 60 calendar day review period will be initiated culminating in a Commission recommendation for a State position.
2. Within 60 calendar days after an applicant gives notice by submitting a mitigation plan to the Division, unless extended in writing by the applicant, the Commission will make its evaluation of the project's impact on fish and wildlife resources and submit its recommendation to the Board.
3. The Commission will make its evaluation regarding the probable impact of the proposed project on fish and wildlife resources and their habitat based on the information submitted pursuant to #1604.A.2. The Commission may consider the following criteria in making their recommendation that the mitigation plan is economically reasonable and reflects a balance between protecting the fish and wildlife resources and the need to develop the state's water resources:
 - i. The value and significance of the affected wildlife resource.
 - ii. The potential impacts of the project and its alternatives to wildlife.
 - iii. The availability of best existing technology to implement and monitor the success of the mitigation plan.
 - iv. The degree to which the identified impacts are mitigated and the permanence of desired effects of the mitigation measures.
 - v. The cost of the planned mitigation in comparison to the benefits to the affected wildlife resource.
 - vi. The net benefits of the project and its mitigation plan to the state's wildlife resources.
 - vii. The consistency of wildlife mitigation with other environmental and conservation goals.
 - viii. The legal ramifications of state water law on implementing the proposed mitigation measures.

4. If the Commission and the applicant agree upon a mitigation plan, the Commission shall recommend that the Board adopt the plan at its next meeting as the official state position on the mitigation action required of the applicant.
5. When the Commission and the applicant do not agree upon a mitigation plan, the Commission shall transmit to the Board 15 copies of its report which shall include (1) its evaluation of the project's impact on fish and wildlife, (2) its mitigation recommendations, including an estimate of the costs and benefits of its plan, and (3) its analysis of the applicant's mitigation plan. Documentation will include the significance of the fish and wildlife resources impacted by the project and a comparison of the impacts to the fish and wildlife resources resulting from both plans.

#1605 - Procedures for Granting an Enhancement Grant

A. Requirements of Applicants

Any applicant who can demonstrate that the project will enhance fish and wildlife resource values over and above existing levels may apply, within two years after the adoption of the official State position on mitigation, for an enhancement grant by submitting ten (10) copies of an enhancement plan to the Division's Denver office and five (5) copies to the appropriate regional office.

The enhancement plan will include:

1. A time schedule for construction of the project and implementation of the mitigation measures.
2. Any significant changes in the project and/or the mitigation plan.
3. A time schedule for the implementation of the enhancement measures.
4. A cost estimate of implementing the enhancement plan.
5. An analysis of the plan's benefits to fish and wildlife.
6. Desired results of the enhancement plan.
7. Impact of the enhancement measures on the surrounding environment.
8. A cost estimate and assignment for the operation and maintenance of the enhancement measures.
9. A plan to monitor the effectiveness of the enhancement measures.

B. Commission Action

1. The Commission will review the applicant's enhancement plan according to the requirements defined in #1605.A. If the Commission approves the applicant's plan it will submit a report to the Board approving the enhancement plan, evaluating the plan's contribution to the state's fish and wildlife resources, approving the cost estimate, and committing the Commission to contribute one-half of the costs. Commission concurrence of the enhancement plan is required before the Board can consider an enhancement grant.
2. If the Board agrees to fund the enhancement plan, the Commission will enter into a contract among the Commission, the applicant, and the Board, prior to the disbursement of the enhancement grant.

ARTICLE III – Rulemaking Petitions

#1606 - Citizen Petition Requirements

Any person may petition the Commission to initiate rulemaking pursuant to 24-4-103(7), C.R.S. All petitions for rulemaking must contain the following information: (1) The name, address, and telephone number of the person requesting the rulemaking; and (2) A copy of the rule proposed in the petition, preferably in redline format, and a general statement of the reasons for the requested rule or revision.

#1607 - Implementation of SB 23-267, Chatfield State Park Water Quality Fee

- A. The Chatfield Watershed Authority may petition the Commission to initiate rulemaking pursuant to SB 23-267, codified at § 33-9-114, CRS, to impose a water quality fee on visitors to Chatfield State Park, provided the requested fee shall not apply to visitors to Chatfield State Park holding an annual or lifetime pass. The Authority's petition must:
- (1) Contain a general statement of the reasons for imposing the requested water quality fee,
 - (2) Contain a copy of the proposed rule, preferably in redline format,
 - (3) Identify current or proposed water quality projects within the boundaries of the Authority in need of funding, including an overview of the anticipated costs and benefits of such projects, and
 - (4) Prioritize current or proposed water quality projects in terms of most urgent need and demonstrate financial need for such projects.
- B. In the event the Commission imposes a water quality fee on visitors to Chatfield State Park, the Authority must, on or before June 1, 2029, submit a report to the Division detailing how and to what extent the resulting funding supported water quality projects that benefited Chatfield State Park and its recommendation on whether the water quality fee should be increased, repealed or otherwise amended. At least 25% of the funding will be used for water quality projects within the boundaries of Chatfield State Park. If the recommendation is to increase the fee with CPI, the fee may only be increased to the nearest dollar amount.

#1608 – Implementation of SB 23-059, concerning providing funding to local governments to support access to state-owned outdoor recreational lands

- A. Local governments may petition the Commission to initiate rulemaking pursuant to SB 23-059, codified at § 33-10-117, CRS, to impose a state park access fee on daily vehicle passes for visitors to a state park managed by CPW and open to the public located within the petitioner's geographic boundaries, provided the requested fee does not apply to visitors to the state park holding an annual or lifetime pass.
1. To satisfy the standing requirements to file a petition, the petitioner must demonstrate that:
 - a. It is responsible for an existing local access route(s) that provides access to a state park within the petitioner's geographic boundaries (local access routes include rights-of-way, including bike or pedestrian paths, that are normally used to travel to or from a state park);
 - b. The existing local access route(s) is located within a 3-mile radius to a state park entrance within the petitioner's geographic boundaries; and
 - c. 50% or more of the traffic on the existing local access route(s) in the petitioner's geographic boundaries is directly tied to park visitation measured by one week of time not including a major holiday weekend.

2. If a petitioner satisfies the standing requirements above, they may file a petition for the Commission's consideration. This petition must:
 - a. Contain a copy of the proposed rule, preferably in redline format;
 - b. Contain proof of how the petitioner qualifies as a "local government" pursuant 33-10-117 (3)(e); and
 - c. Demonstrate how a state park access fee would improve state park access and/or alleviate existing access issues by either:
 - i. Identifying the existing local access route(s) within the petitioner's geographic boundaries in need of funding for maintenance, including the current and anticipated costs and benefits of such route(s), and prioritize the existing local access route(s) in terms of most urgent need of funding; or
 - ii. Identifying the need for financial assistance to support additional access to state parks within the petitioner's geographic boundaries (supporting access may include maintaining and constructing local roads, bicycle lanes, shuttle operations, and multimodal access routes) through a state park access fee.
 3. Petitions are due by May 31st annually to be considered during the same year, and if approved, implemented by January 1st the following year.
- B. Reporting Requirements – The Commission shall adjust the fee every five years to account for inflation or deflation. The first fee adjustment will occur in 2030 and will repeat every 5 years. If the fee increases or decreases with inflation, the fee shall be rounded to the nearest dollar.
1. Reporting shall be required within 120 days of the end of every 5-year fee adjustment cycle. Reporting shall include at a minimum:
 - a. Expenditure details
 - b. A description of the project(s) that the local government is currently or is planning to use the disbursed funds on. The local government shall demonstrate how the disbursed funds are being used or will be used to support access to state parks within their geographic boundaries, which may include maintaining and constructing local roads, bicycles lanes, shuttle operations, and multimodal access routes.
 - c. A description of how state park access has benefited or will benefit from the existing or proposed project(s).

ARTICLE IV – Commercial Use of Property Owned or Managed by the Division

#1610 – Definitions

- A. **"Application Fee"** means the fee charged by the Division for all permit applications. The Application Fee provides funds to the Division for the review and administration of permits.
- B. **"Commercial Use"** means any commercial purpose of any kind including but not limited to operating a commercial business; soliciting business; providing goods or services for compensation of any kind including trades or bartering; marketing a business or organization; activities or events which charge participants a fee to participate or attendees a fee to view; raising funds for charitable organization; or any other activity where anyone collects a fee or receives other compensation that is not strictly a sharing of, or is in excess of, actual expenses incurred for the purposes of the activity, service, or use. Commercial Use includes scientific,

educational, therapeutic, not-for-profit, nonprofit, and community organization uses of CPW Property.

- C. **“Commercial Use Fee”** means the amount that will be charged to the permit holder for the permit itself. Commercial Use Fees will be established as provided by this regulation. The Commercial Use Fee is charged in addition to the Application Fee and Impact Fee.
- D. **“CPW Property”** means any real property owned, controlled, or managed by the Colorado Division of Parks and Wildlife including but not limited to state parks, wildlife areas, state fish units, recreation areas, state administrative areas, and water rights.
- E. **“CPW Property Manager”** means, for the purpose of this regulation only, the relevant decision making employee for the CPW Property affected by the Commercial Use request. The CPW Property Manager may be a Park Manager, Hatchery Manager, Area Wildlife Manager, or any other local or regional Division staff with delegated decision making authority for Commercial Use on a particular CPW Property.
- F. **“Impact Fee”** means an amount that will be charged to the permit holder to address specific impacts to the Division or the CPW Property as a result of the Commercial Use authorized by a permit. An Impact Fee may not be required in all circumstances and will vary from permit to permit. The Impact Fee is in addition to the Application Fee and Commercial Use Fee.
- G. **“Incidental Commercial Use”** means a commercial activity that may occur on CPW Property that is provided to recreational users when the provider does not advertise or solicit for business specifically for CPW Property, the provider maintains a separate place of business, and the service is not one for which the provider is required by law to obtain a guide or outfitter license. Examples of Incidental Commercial Use include, but are not limited to, emergency vehicle repairs, locksmiths, or tow services; food delivery services; transportation services; dog tracking services; or other similar incidental services.
- H. **“Property Entry Fee”** means the fee established by regulation which every attendee or vehicle is required to pay in order to enter the CPW Property. See CPW Regulations Chapter P-7 and Chapter W-9.

#1611 – Commercial Use Prohibited

- A. Commercial Use is prohibited on all CPW Property without written permission from CPW as permitted by Commission rule. See §33-6-113.5 & §33-15-114, C.R.S. These Regulations provide guidance on when Commercial Use may be permitted on CPW Property and the process for obtaining written permission for the Commercial Use.
- B. Incidental Commercial Use may be allowed on CPW Property by the CPW Property Manager as reasonably necessary to prevent any adverse impact on the CPW Property’s intended purpose(s), CPW’s mission, wildlife resources, or the CPW Property’s primary management objectives, and to protect wildlife, wildlife habitat, and public health, safety, or welfare of property visitors.
- C. Commercial Use allowed under specific licensing or permitting requirements provided in different regulations is allowed in accordance with the terms and conditions of those regulations. Any Commercial Use provided for by such regulations must be conducted as required by the regulations and if conducted with the proper licenses as required by the

regulations may not need to obtain an additional separate Commercial Use agreement or permit.

1. Commercial fishing is permitted as provided in Chapter W-1 #102. Separate Commercial Use authorizations are not required to put a commercial fishing license to use on a CPW Property.
2. Field trials and training of hunting dogs are licensed as provided in Chapter W-8. A field trial license holder under W-8 #802 must separately obtain a Commercial Use permit to charge participants in accordance with this regulation for all field trial events or hunting dog training events on CPW Property. An individual dog training permit holder under W-8 #803 is not required to obtain separate Commercial Use authorization under this regulation.

#1612 – Agreements

A. Commercial Use may be allowed on CPW Property through written agreements as provided by this regulation or as otherwise authorized by law.

B. Concession Agreement

1. A concession agreement is an agreement:
 - a. between the Division and a private individual or company (concessionaire)
 - b. with a term greater than one (1) year
 - c. for the concessionaire to provide goods or services on a CPW Property.
2. Concession agreements may require investments of infrastructure on CPW Property in order for the concessionaire to provide the goods or services.
3. Concession agreements may be negotiated by the Division.
4. Concession agreements must be issued in accordance with state procurement and fiscal rules.

C. Cooperative Agreement

1. The Commission may enter cooperative agreements with state and other agencies, educational institutions, municipalities, political subdivisions, corporations, clubs, landowners, associations, and individuals for the development and promotion of parks and outdoor recreation programs or wildlife programs. §§ 33-1-105(1)(e) & 33-10-107(1)(d), C.R.S. Cooperative Agreements that allow cooperating parties to charge third parties fees for participating in the authorized Commercial Use are permissible. Nothing in these regulations impairs the specific authority of the Commission pursuant to sections 33-1-105(1)(e) and 33-10-107(1)(d) C.R.S. to enter into cooperative agreements for the development and promotion of Division programs, or the general authority of the Commission pursuant to sections 33-1-104 and 33-10-106 C.R.S. to manage all CPW Properties for both commercial and noncommercial purposes. The authority granted to CPW Managers is intended to allow them to address events of limited and local impact, and is specifically intended to coexist with, and not to exclude, the Commission's statutory

authorities.

#1613 – Commercial Use Permits

- A. The Division may allow Commercial Use on CPW Property through Commercial Use Permits as provided in this regulation.
1. Commercial Use Permits may be approved or denied by the Division as reasonably necessary to prevent any adverse impact on the CPW Property's intended purpose(s), CPW's mission, wildlife resources, or the CPW Property's primary management objectives, and to protect wildlife, wildlife habitat, and public health, safety, or welfare of property visitors.
 2. Permits should ensure that authorized Commercial Uses will not have an adverse impact on the CPW Property's intended purpose(s), the mission of the Commission and Division, wildlife resources, health, safety, or welfare of property visitors, and should address special planning or scheduling for proper management.
 3. Commercial Use Permits should not allow the use of a CPW Property in a manner which exceeds the CPW Property's established capacity or is contrary to the Property's primary management objective(s).
 4. Commercial Use Permits may be considered based on a demonstrated need for the goods or services to be provided.
 5. Commercial Use Permits should not unreasonably interfere with or degrade the quality of experience for the general public using the property.
- B. Commercial Use Permits (Activity Permits and Event Permits)
1. Activity Permits are required for any Commercial Use that will occur on a routine or ongoing basis for up to one (1) year. Activity permits may not be valid for longer than one(1) year.
 2. Event Permits are required for any Commercial Use that will occur one time or daily for a short period of consecutive days on specific date(s). If an applicant requests more than one event in a calendar year separated by seven (7) days or more, each request will be handled as a separate event. CPW Property Managers may use Event Permits to authorize events or activities on the CPW Property that are not Commercial Uses but are not allowed under any other regulation. All other requirements for Event Permits in this regulation still apply to event permits for events or activities that are not for Commercial Uses. Event Permits may not be used where a separate regulation otherwise controls the event or activity.
- C. Commercial Use Permit Applications
1. An application for a Commercial Use Permit must be submitted to the CPW Property in writing and include the following:
 - a. Application:
 - 1) Activity Permit: Submission of a completed application form provided by the

Division. The application, at a minimum, must include an individual to contact for the Activity Permit and a reasonable description of the desired Commercial Use.

- 2) Event Permit: Submission of a completed application form provided by the Division. The application, at a minimum, must include an individual to contact for the Event Permit, the specific location of the Event, the anticipated number of attendees for the Event, the specific date(s) and time(s) of the Event, and a reasonable description of the Event.
 - a. Application fee.
 - b. Proof of general liability insurance naming the State of Colorado as an additional insured as determined by the CPW Property Manager.
 - c. Proof of additional insurance as determined by the CPW Property Manager.
 - d. Proof of appropriate certifications and licenses as determined by the CPW Property Manager.
 - e. Additional information or documents as determined by the CPW Property Manager.
 - f. Commercial Use Permit on a CPW Property not owned in fee title by CPW: If the CPW Property where a Commercial Use Permit will be used is not owned in fee title by CPW, the Property Owner may require significant evaluation of the impacts of the Commercial Use Permit as part of the application process. If required by the Property Owner, the CPW Property Manager may retain third party consultants to evaluate the potential adverse impacts of the proposed Commercial Use and develop appropriate strategies to offset or mitigate such risks. The applicant shall be notified if the evaluation is required, and if the CPW Property Manager decides to retain a consultant, shall be given the opportunity to provide input concerning consultant selection and scope of work. The applicant shall be responsible for the actual costs associated with this consultant review.

2. Commercial Use Permit Application timing:

- a. Activity Permit applications should be submitted at least 90 days before the proposed start date for the Commercial Use. The Division may waive the 90-day application requirement or set an application date schedule in rare circumstances where arrangements can be made in a shorter time or a date schedule will not put undue administrative burden on the CPW Property Manager and the CPW Property Manager deems the shorter time or date schedule appropriate to meet the needs of the CPW Property.
- b. Event Permit applications should be submitted to the Division at least 90 days in advance of the proposed event. The CPW Property Manager may consider Event Permit applications less than 90 days in advance where arrangements can be made in a shorter time and the shorter time will not put undue administrative burden on the CPW Property Manager and the CPW Property Manager deems the shorter time appropriate to meet the needs of the CPW Property.

3. The Division may give preference to Activity Permit applications from applicants who have previously held an Activity Permit for the same type of activity and are in good standing when the CPW Property Manager deems such preference is appropriate when evaluating multiple applications for the same Commercial Use opportunity.
4. Commercial Use Permit Approval
 - a. Upon approval of a Commercial Use Permit, a signed and approved permit will be delivered to the permit applicant. The final permit may include additional terms and conditions as reasonably necessary to prevent any adverse impact on the CPW Property's intended purpose(s), CPW's mission, wildlife resources, or the CPW Property's primary management objectives, and to protect wildlife, wildlife habitat, and public health, safety, or welfare of property visitors.
 - b. Terms and conditions on permits should be tailored to the specific type of Commercial Use authorized by the permit.
 - c. Terms and conditions may include requirements that the permit holder pay for and provide any services to be used by the participants including but not limited to sanitary services (trash receptacle and removal and portable toilets), signage, security, and EMS.
 - d. Terms and conditions may include requirements established by the property owner in instances where CPW manages a property through a lease or other agreement with a third party.
 - e. Approved Commercial Use Permits may include fees as provided by this regulation.
 - f. Approved Event Permits will require separate vendors for the event to obtain individual Event Permits to participate in the event as a vendor.
5. Transferability
 - a. Activity Permits: Activity Permits are non-transferable without the Division's prior written authorization.
 - b. Event Permits: Event Permits are not transferable.
- D. Permits may be granted, denied, revoked, suspended, annulled, limited, or modified by the Division if the Division concludes such action is reasonably necessary to prevent any adverse impact on the CPW Property's intended purpose(s), CPW's mission, wildlife resources, or the CPW Property's primary management objectives, or to protect wildlife, wildlife habitat, and public health, safety, or welfare of property visitors. The issuance of a permit is not guaranteed. Examples of reasons Commercial Use Permits may be denied, delayed, revoked, suspended, or annulled include, but are not limited to:
 1. The provisions of this regulation #1613.A.1-5.
 2. Failure to provide complete application materials.
 3. Failure to submit application materials by the relevant deadline.

4. Failure to pay application or other fees required for the permit, including a history of failure to pay fees by the requester.
5. Failure to comply with the terms or conditions of a permit or any prior permit held by the requester. Permit holders may correct previous errors in permit compliance, but the Division is under no duty to issue new permits following corrections.
6. Failure to properly document and report the use of CPW Property as required by a permit.
7. Conducting activities or uses of CPW Property not expressly authorized by a valid Commercial Use Permit.

E. Administrative Procedure

1. A decision to grant, deny, revoke, suspend, annul, limit, or modify a Commercial Use Permit under this regulation is subject to the Colorado Administrative Procedures Act, §24-4-104, C.R.S.

#1614 – Fees

A. Agreements

1. Concession Agreement: Fees for concession agreements shall be negotiated by the Division. Fees may include annual administration fees, commission fees based on a percentage of the total gross receipts collected by the concessionaire, property or improvement rental fees, or any other fees deemed appropriate by the Division.
2. Cooperative Agreement: Fees for cooperative agreements shall be negotiated by the Division. Fees may include annual administration fees, fees associated with planned activities under the agreement, property or facility rental fees, or other fees deemed appropriate by the Division. Cooperative agreements may be entered on the basis of trades of goods or services with CPW as deemed necessary by the Division.

B. Commercial Use Permits

1. Application Fee: All permits require a non-refundable application fee for CPW to process the permit application. The application fee shall be:
 - a. Activity Permit: \$150.
 - b. Event Permit: \$50.
2. Property Entry Fee: In addition to any other fees required for a permit, every attendee or vehicle may be required to pay the Property Entry Fee assessed on the public to enter the CPW Property. The Division may establish means to manage any administrative burden that may be incurred by the CPW Property as a result of issuing a permit. The CPW Property Manager may also make permit specific alternative arrangements as allowed by CPW regulations. See CPW Regulations Chapter P-7 and Chapter W-9.
3. Permit Fees:
 - a. Commercial Use Fee:
 - i. A Commercial Use fee shall be charged by the Division for every permit unless a fee waiver is approved as provided by this regulation. The Commercial Use fee is

intended to ensure that the Division realizes a reasonable rate of return over and above the administrative and property impact costs to the Division for allowing Commercial Use on a CPW Property. Commercial Use fees shall be implemented by the Division in a consistent and predictable manner according to the following restrictions.

- ii. The CPW Property Manager may require some or all of the Commercial Use fee as a non-refundable deposit to be paid in advance of use of the permit as reasonably necessary to ensure that Commercial Use Permits are reliably used.
- iii. The Commercial Use fees shall be:
 - 1) Activity Permits: 5% of gross revenue earned by the permit holder under the permit.
 - 2) Event Permits: 50% of the property entry fee per attendee under the permit.
 - 3) Any Commercial Use Permit for filming or photography shall be based on the number of people entering the property under the permit as follows:
 - a. 1-2 people, camera and tripod only.....\$50.00/day
 - b. 3-10 people.....\$150.00/day
 - c. 11-30 people.....\$250.00/day
 - d. 31-49 people.....\$500.00/day
 - e. 50-74 people.....\$750.00/day
 - f. Over 75 people.....\$1000.00/day
 - 4) Impact Fees: In addition to the Commercial Use fee, the permit may require the permit holder to pay for the cost of any services that are necessary to facilitate the Commercial Use and prevent any negative impact on the CPW Property. Impact fees may include, but are not limited to, the costs of trash receptacles and trash removal, toilet facilities and clean up, property clean up services, security, additional hours for CPW staff that are not normally provided (e.g. additional ANS inspection hours), traffic control, or EMS services. Impact Fees ensure that CPW does not bear the cost of the Commercial Use of CPW Property.
- 4. Fee Waivers: Applicants for a Commercial Use permit may request a waiver of part or all of the fees required for permits. Waivers must be requested in writing with a statement explaining why the waiver should be granted. Fee waivers may be approved by the Division only in limited circumstances outlined below. Approved waivers will be noted on the final permit. Fees may be waived:
 - a. For errors committed by the Division.
 - b. For Division sponsored education, outreach, volunteer or safety activities or events.
 - c. For supporting partner activities or events.
 - d. For research activities that directly support the Division.
 - e. For official business by other governmental agencies.
 - f. The use allowed by the permit aligns with CPW's mission.

- g. The use allowed by the permit aligns with or enhances the CPW Property specific management objectives.

#1615 - Cameo Shooting and Education Complex

- A. Purpose: Cameo Shooting and Education Complex ("Cameo") is a unique CPW Property. This regulation allows the unique Commercial Uses that occur at Cameo within the same framework provided in this regulation while allowing for the unique nature of this CPW Property.
- B. Agreements
 1. The Division may allow Commercial Use of Cameo under #1612 as provided in that regulation.
- C. Permits
 1. The Division may allow Commercial Use of Cameo under #1613 as provided in that regulation and this section.
 2. Any Cameo Permit application will also require additional information to allow a vetting process to assure and maintain the legitimacy of a group who plans to hold events at Cameo. The additional information required may relate to firearms safety credentials for individuals in the group (if it involves firearms) or other important information as necessary to provide complete information specific to Commercial Use at Cameo to ensure the protection of public health, safety, and welfare of visitors.
- D. Fees
 1. The Division shall require fees consistent with #1614 for Commercial Use permits at Cameo with the following modifications.
 2. Application Fees for Commercial Use permits at Cameo shall range from \$10 - \$100 depending on the size of the planned Commercial Use.
 3. Property Entry Fees: Property Entry Fees for Cameo Commercial Use permits shall be as established by regulation. See Chapter P-7, #708.
 4. Commercial Use Fees: Commercial Use fees specific to Cameo Commercial Uses shall be:
 - a. Single Bay Use /Location Use - \$10.00 per person per day or 10% of gross whichever is greater.
 - b. Multiple Bay Use - \$10.00 per person per day or 15% of gross whichever is greater.
 - c. Larger Events/ Sanctioned Matches - Pricing based on reasonable rate of return to the Division. Examples: IDPA/USPSA/Multi-gun matches = \$20.00/person. 3-D Archery shoot = \$10.00/person.
 - d. Local/State/Federal LEO or Military agencies conducting training and/or qualifications - \$10.00 per person per day. No charge for Classroom, Picnic Shelters, or Ballroom if added and otherwise available. LRP: Deposit of \$120.00, \$10.00 per person per day or \$120.00 per day whichever is greater.
 - e. Security company who's activity generates no income as a result of the use of the facility but who's activity is a necessary part of training or qualification of its employees - \$25.00 per attendee per day for single bay, \$50.00 per attendee per day for multiple bay, \$100.00 per day for classrooms.

- f. Youth Consideration - \$3.00 per person per day. Qualification: Primarily Youth outreach events or other events that typically charge less for their youth participants.
 - g. Clays Events: Clays are retail items and the event rate is built into the clays pricing. This is a standard practice nationally –
 - i. Events - \$0.30 Per Clay + Taxes
 - ii. Fundraiser Events - \$0.25 Per Clay + Taxes
 - iii. Tournament Events - \$0.20 Per Clay + Taxes. Qualifications: 15,000 clays per day, min 100 clays per shooter.
 - iv. Clays Training/Coaching - 15% of gross after subtracting the price of the clays (User Group pays for clays at \$0.30 + tax)
 - h. LRP-Long Range Precision –
 - i. Public Day Non Annual Pass Holder - \$20.00 per person per 2 hour time slot
 - ii. Public Day Annual Pass Holder - \$12.00 per person per 2 hour time slot per person
 - iii. Public Day Youth - \$3 per person per 2 hour time slot per person
 - iv. Non Public Day - Deposit of \$250.00, 20 per person per day or \$250.00 per day whichever is greater. Deposit is taken out of final fee
 - v. User Group - Deposit of \$250.00, 20 per person per day or \$250.00 per day whichever is greater
 - vi. Recurring Event - \$15 per person per day
 - i. Ballroom (large warehouse/event space) - For stand alone ballroom usage, \$2.00 per person or \$400.00 whichever is greater. Ballroom use in association with major events for awards or banquets is typically included in the event permit pricing. For minor duration and smaller usage associated with larger events (registration/check in etc.)
 - j. Classrooms –
 - i. Classroom ONLY - \$10.00 per person per day or 15% of gross, whichever is greater
 - ii. Classroom W/ BAYS - One time \$25.00 charge per permitted event for events less than 15% of gross - Loft is included for large events or LRP events
 - iii. Classroom MEETING - \$25.00 Per Day if no gross just a meeting space
 - k. Picnic Shelters 1 & 2 - \$120.00 if event is based primarily on use of the picnic pavilion. Picnic pavilion is Included with larger events using other facilities
 - l. Bullseye Dry Camping - \$25.00 per night per spot, \$250.00 per night all 12 spots
5. Impact Fees: The Division may require Commercial Use permits at Cameo to include any appropriate Impact Fees.
 6. Fee Waivers: The Division may allow fee waivers in accordance with these regulations.

ARTICLE V - Division Agents

See also § 33-4-101, C.R.S. and § 33-12-104 (1) C.R.S., for statutory provisions applicable to Division agents.

#1660 – Definitions

- A. **"Division Product"** means any license, pass, permit, or registration which is sold through the Division of Parks and Wildlife integrated system.
- B. **"Accountable Inventory"** means equipment or stock which is assigned to agents and which they are responsible to return to the Division or the system agent upon request. Types of accountable inventory include, but are not limited to:
 - 1. **"Division Product Stock"** means the specialized paper stock used for the printing of Division products by a Division agent.
 - 2. **"Receipt Stock"** means the specialized paper stock used for the printing of receipts or affidavits by a license agent.
 - 3. **"Point of Sale (POS) Terminal"** means all machine components which license agents use to access the Division's electronic licensing system and conduct license transactions.
- C. **"Automatic Cash Handling" ("ACH")** means the direct electronic transfer of funds from one bank account to another,
- D. **"Division Agent"** means a business (sole proprietorship, partnership, or corporation) which is authorized to sell Division products from a specific location as an agent of the Division of Parks and Wildlife. Types of agencies are defined as follows:
 - 1. **"Retail Agent"** means a business which sells Division products for the Division from its retail store or other location of record.
 - 2. **"Consolidated Agent"** means a retail agent which sells Division products for the Division from two or more stores or other locations of record and which is licensed to conduct all business with the Division as a single entity.
 - 3. **"System Agent"** means the company contracted by the Division to operate its integrated parks and wildlife system, including, but not limited to, the provision of any accountable inventory or other necessary materials to retail agents; the maintenance of the electronic system and provision of electronic reports to the Division; the sale of Division products by telephone and through an internet site; the acceptance of applications through the internet site for the limited license drawings; and the printing and distribution of such licenses to the recipients (license fulfillment).
- E. **"Location of Record"** means the street address of the retail store or other specified business location(s) from which an agent sells Division products, as specified in the agent agreement or system agent contract.

#1661 - Division Agent Establishment - Agent Requirements and Application Processing

- A. Agent Requirements and Function

1. Division Agent Establishment

- a. Division agents will be established and authorized to sell Division products from a permanent location of record.
- b. Prior to the sale of electronic Division products, all retail agents must enter into a written contract (agent agreement) with the Division which specifies the terms of operation and the services to be provided by the agent and the Division, in accordance with applicable statutes, regulations, or policies of the Commission or Division.
- c. No Division product may be sold within the same portion of any business, building, or establishment where liquor is sold by the drink.
- d. Retail agents open for business must sell all license types available. Seasonal agents may restrict their hours of operation depending on the nature of their business according to their agent agreement.

2. Division Product Sales

- a. Retail agents must sell Division products from a location of record within the state of Colorado.
- b. The system agent may operate from a location of record within or outside of the state of Colorado.
- c. Retail agents who provide regular, established business hours will be provided with a minimum of one POS terminal. Consolidated agents who sell licenses to the general public during regular business hours will be provided with a minimum of one terminal per store.

B. Application Processing

- 1. New applicants for a Division agent must apply to the Division at least 60 days prior to the desired opening date. Provided further, however, that new agent applications are not processed between August 15 and December 31 without demonstration of immediate need. In such cases, applications for transfer of an agency from one owner to another shall have priority.
- 2. Prior to the processing of any license agent application, the applicant is required to submit the following:
 - a. A completed application, on forms provided by the Division.
 - b. Proof of the required financial surety.
 - c. Proof of property insurance.
 - d. Verification that neither the applicant, nor any partner, officer, director or substantial shareholder thereof was the individual holder of any company, business, corporation or other entity which was a Division agent and which designation was either suspended or canceled for cause within the two-year period preceding the application date.

- e. Except in the case of corporations, proof of lawful presence in the United States.

#1662 - Financial Guaranty (Surety)

See also § 11-35-101 - 101.5, C.R.S. for general requirements concerning forms of surety.

A. Amount and Proof of Surety

1. Prior to the establishment of any Division agent, the applicant shall provide proof of financial surety, on forms provided by the Division, for a minimum period of twelve months. The initiation and expiration dates of the coverage must be stated on the surety certificate. A continuation certificate issued by the bonding company or financial institution or proof of other acceptable financial surety shall be required for renewal of the Division agent for each twelve-month period, and must be provided to the Division no later than thirty days prior to expiration. All surety certificates must be originals and signed by both the surety (or their legal designee) and the Division agent.
2. Division agents shall be bonded in the amount necessary to ensure remittance of all funds due the Division. New license agents shall be required to be bonded for a minimum of \$2000. After the first twelve months for a new agent, or considering the historical sales records for existing agents, the amount of financial surety required of each agent shall be sufficient to ensure payment for licenses sold for the highest ten consecutive days sales in the current bonding period. Consolidated agents shall be responsible for the remittance of funds collected by their outlets, and shall be required to bond in the amount necessary to cover each outlet in the agency as if they were licensed individually.
3. Division agents shall not sell Division products in amounts that would exceed their bond level. Agents shall be responsible for payment of revenues at more frequent intervals, via ACH, if necessary to restore available bond.
4. Division agents shall have the option to adjust their surety level on a quarterly basis as determined by the highest ten consecutive days in the quarter. Quarters shall begin on the first days of January, April, July, and October. Proof of such adjustment must be posted before sales can be made against the higher bond amount.

#1663 - Division Agent Operation and Performance Standards

A. Division Agent Operation and Performance Standards

1. Division agents are required to meet the following standards at all times:
 - a. Maintain the required surety bond level.
 - b. Display and distribute all public information, such as brochures and placards, provided by the Division,
 - c. Maintain a file of receipts, affidavits, or any other document required in the agent agreement.
 - d. Keep all paper stock, POS terminals, and any other Division product equipment in a safe place and in good condition at the location of record, as specified in the agent agreement.

- e. Obtain insurance adequate to cover replacement of any POS terminals or other Division product-related equipment leased from the system agent.
- f. Sell all Division products and collect all donations specified in the agent agreement, and only at the location of record.
- g. Sell Division products only at face value, and only to those who are eligible to purchase them, in compliance with all applicable statutes and regulations.
- h. Establish an agent bank account with ACH capability which is electronically accessible to the Division.
- i. Deposit the state share of all Division product revenues in the agent bank account in the total amount due, in accordance with the schedule in the agent agreement.
- j. Immediately report the theft or loss of any accountable inventory.
- k. Attend any training required by the Division concerning applicable statutes and regulations and performance of agent duties, at the location specified by the Division.
- l. Comply with all statutory and regulatory requirements, all provisions of the agent agreement, and all directives of the Division, including, but not limited to, those provided via direct correspondence or in the Division Agent Manual.
- m. Provide reasonable access to any Division officer or other peace officer upon request during normal business hours for the purpose of inspection of equipment, materials, records, or other applicable license agent documents or information.
- n. Read and comply by any correspondence sent to the agency by the Division, including, but not limited to: electronic bulletins; agent bulletins; special communications by mail, email, or through the system; and non-compliance letters.
- o. Train all staff in the issuing of Division products as well as applicable policies and procedures prior to their use of the system.

#1664 - Division Agent Status

A. Termination of Agents

1. Division Agent Termination

- a. Division agents who wish to terminate their agency shall notify the Division in advance of such termination and the effective date; and shall reconcile with the Division as follows:
 - (1) All revenues due must be deposited in the agent account and all accountable inventory shall be returned to the Division, to the location or in the manner designated, within 10 business days after the termination date.
 - (2) Agents which have purchased their POS terminal must allow the Division or its system agent to remove the integrated system software from the POS terminal within 3 business days after notification of the effective date of the termination.

B. Transfer of Agencies

1. Division Agency Transfer

- a. Whenever a Division agent is to be sold, leased, or transferred in any manner, the new owner or person having control of the business may file an application to become a new Division agent. The new agent must qualify to be an agent and independently comply with all other provisions of the statutes and these regulations.

C. Suspension and Cancellation of Agencies

See also §§ 24-4-104 C.R.S. for applicable statutes concerning appeals process.

1. Failure to Comply with Performance Standards

a. General Performance Standards

- i. Failure of a Division agent to comply with applicable rules and regulations of the Parks and Wildlife Commission or any lawful directives of the Director of Colorado Parks and Wildlife shall be grounds for an agent being declared delinquent, or for the suspension or cancellation of the Division agent.
- ii. When an agent does not comply with performance standards other than surety bond and payment of revenue, the agent shall be notified of the problem and the steps required to correct it. Any failure to correct the problem is grounds for revocation suspension, annulment, limitation, or modification of a Division agent.

b. Performance Standards for Surety and Monies Due the Division

- i. When, through agent error, the Division does not receive ACH revenues due to it, the following actions shall be taken:
 - (1) For the first failed ACH transaction within a twelve-month period, the agent shall be notified of a new date for an ACH transaction and shall deposit the required amount of funds in the agent account by that date.
 - (2) For a second failed ACH transaction within the same twelve-month period, the agent's POS terminal shall be disabled until the funds, including any interest due, have been received. The agent shall be notified of the date for another ACH transaction and shall deposit the required amount of funds in the agent account by that date.
 - (3) For a third failed ACH transaction within the same twelve-month period, the agent's POS terminal shall be disabled and the agent may be revoked. All funds due the Division must be immediately remitted to the Division in certified funds.
- ii. When an agent's surety bond is not current, the agent shall be notified of the need to provide a current certificate and shall have fifteen business days to provide the required proof. The agent's POS terminal shall be disabled until the certificate is received. If no bond certificate is received, the agent may be revoked.

c. Consolidated Agent Suspension or Revocation

- i. One or more outlets (stores) of a consolidated agency may be suspended or revoked without suspension or revocation of the entire agency.

#1665 – Agent Commission Rates

See also §33-4-101 C.R.S. relative to CPW agents and §33-4-102(1.6)(b) C.R.S. for price indexing information for nonresident big game licenses.

a. Commission Rates for Retail Agents:

1. Division agents shall be paid a 4.75% commission for each license sold electronically, except for those licenses with commissions as shown below in Table A.4.
2. Division agents shall be paid a 5% commission for each pass sold electronically.
3. Division agents who sell registrations shall be paid a flat rate of \$1.00 per registration issued.
4. Other Commission Rates:

Table A.4: Division Product Type	2024 Commission	% of license price in 2024	2025 Commission	% of license price in 2025
Second Rod Stamp	\$0.73	6.7%	\$0.75	6.7%
Resident Fishing - 1 day	\$0.98	6.7%	\$1.00	6.7%
Nonresident Fishing – 1 day	\$1.22	6.7%	\$1.25	6.7%
Fishing - 5 day	\$2.44	6.7%	\$2.51	6.7%
Resident Small Game - 1 day	\$0.98	6.7%	\$1.00	6.7%
Nonresident Small Game – 1 day	\$1.22	6.7%	\$1.25	6.7%
Nonresident Deer	\$17.27	3.6%	\$17.74	3.6%
Nonresident Pronghorn	\$17.27	3.6%	\$17.74	3.6%
Nonresident Bear	\$9.00	3.6%	\$10.55	3.6%
Nonresident Mountain Lion	\$18.00	3.6%	\$29.64	3.6%
Nonresident Antlerless Elk	\$28.86	3.6%	\$29.64	3.6%
Nonresident Either-sex Elk	\$28.86	3.6%	\$29.64	3.6%

Table A.4: Division Product Type	2024 Commission	% of license price in 2024	2025 Commission	% of license price in 2025
Nonresident Antlered Elk	\$28.86	3.6%	\$29.64	3.6%
Nonresident Rocky Mtn Bighorn Sheep	\$96.63	3.6%	\$99.24	3.6%
Nonresident Desert Bighorn Sheep	\$96.63	3.6%	\$99.24	3.6%
Nonresident Goat	\$96.63	3.6%	\$99.24	3.6%
Nonresident Moose	\$96.63	3.6%	\$99.24	3.6%

All 2024 licenses sold through March 2025 shall be sold at the 2024 license fee and commission rates.

- b. Commission Rates for the System Agent: The system agent shall be paid the commissions shown in the Table B.1 below for each license sold through the system:

1. Commission pricing for any CPW Commissionable Product sold through IPAWS

Table B.1: Commission Rates	IPAWS Products
a. Contractor Commission Fee percent commission rate to cover AWO System operation and maintenance cost for those products less than \$100 and not listed below in c.	3.7%
b. Contractor Commission Fee flat fee commission rate to cover AWO System operation and maintenance cost for those products \$100 or greater and not listed below in c.	\$4.25
c.1. All Wildlife Applications, regardless of Product Cost.	\$4.25
c.2. Parks variable cost products, regardless of actual Product Cost.	3.7%
Breakout Costs	
Contractor credit card fee	2.2%
Contractor fulfillment fee	\$1.45

#1666 – Registrations-Only Agents

1. Registration-only agents: except for agents exempted from surety requirements in accordance with C.R.S. 33-12-104(9) when cash sales are made to financially secured agents they shall be

subject to the following conditions:

- a. Purchase of accountable inventory registrations shall be made at the designated Division office or by submitting funds by mail to the designated address. Funds submitted for purchase must be in the exact amount of the Division's share for the number of registrations;
- b. All mail orders shall be placed on forms supplied by the Division.
- c. Redemption of unsold registrations may be made at the designated Division office or by submitting unsold registrations to the Division by mail.
- d. The termination procedures of registration agents who purchase registrations for cash shall include having the agent turn over to the Division or its representative all unsold registrations.
- e. Yearly submit final payment and return all unused accountable inventory by no later than November 15. Registrations may be carried over from year to year unless otherwise notified by the Division, in which case instructions will be given as to return/payment deadlines.

ARTICLE VI – Refunds, Reimbursements, Restoration of Preference Points and Reissues

#1670 – Refunds, Restoration of Preference Points and Reissues

See also §§ 33-4-102 (6) for statutory provisions related to refunds

A. General Refund Procedures – Except as provided herein, anyone may request and be given a refund for a license no later than fourteen (14) days prior to the opening day of the applicable turkey season for turkey licenses or thirty (30) days prior to the opening day of the season for which the license was issued for all other licenses, minus a \$15.00 processing fee. The \$15.00 processing fee will not be charged for refunds requested on youth licenses, in the case of Division error, or if any of the following circumstances prevent the license holder from exercising the intended benefits of the license: extreme medical circumstances involving the license holder or a license holder's immediate family member, death of the license holder, death of the license holder's immediate family member, military orders, or jury duty. Requests must have a valid U.S. postmark, or be submitted at a Division office at least fourteen (14) days prior to the opening day of the applicable turkey season or thirty (30) days prior to the opening day of any other season for which the license was issued. Youth are exempt from the (14) days prior requirement for turkey licenses and the (30) days prior requirement for big game licenses and may submit a request up to the day before the start of the season.

1. All refunds shall be requested on a form provided by or in the format requested by the Division.
2. All requests for license refunds must be accompanied by the entire license and carcass tag when applicable.
3. Refunds may be requested by mail or in person at any Division office.
4. Refunds shall only be issued to the person whose credit card was used or name appears on the license.
5. Licenses purchased through non-Division license agents will be refunded at cost less license agent fee.
6. No refunds shall be made in any circumstance where the license holder was hunting in the

field during an active season for the license and designated species as specified in Commission rules and regulations.

7. No refunds shall be made on any special licenses listed in 33-4-102(2), C.R.S., or any auction or raffle licenses as provided for in 33-4-116 or 33-4-116.5, C.R.S., or on any exchanged license, or on any license that costs less than \$15.00 with the exceptions of resident youth turkey and resident youth big game licenses, or to any person whose license privileges have been suspended by the Commission.
8. When the \$15.00 processing fee exceeds the original refund amount, no refund shall be issued and the remainder of the processing fee shall be waived.
9. Until January 1, 2028, all limited licenses returned to the Division for a refund or preference point restoration will be available for reissue after the request has been processed using the current leftover list and following all other license purchase regulations, except for the following limited licenses:
 - a. Turkey, deer, elk, pronghorn and bear hunt codes which required five (5) or more resident preference points to draw as determined by the current year's limited license draw;
 - b. Bighorn sheep, mountain goat, and moose licenses;
 - c. All public Ranching for Wildlife licenses.
10. Until January 1, 2028, the following limited licenses returned for refund or preference point restoration will be reissued by the Division manually:
 - a. Turkey, deer, elk, pronghorn and bear hunt codes which required five (5) or more resident preference points to draw as determined by the current year's limited license draw;
 - b. Bighorn sheep, mountain goat, and moose licenses;
 - c. All public Ranching for Wildlife licenses.

If the next in line regular draw list applicant accepts one of the aforementioned first choice licenses that has been returned and reissued, all accumulated preference points for that species become void. If a license cannot be manually reissued to one of the first five people on the regular draw list, the license will become available for reissue using the current leftover license list. Public Ranching for Wildlife licenses will not be reissued within fourteen (14) days of the start date for the respective hunt code or be available for sale off the leftover license list.

11. Beginning January 1, 2028, the following processes will be used to reissue limited licenses returned to the Division:
 - a. All limited licenses surrendered, unpaid for by the payment deadline, or returned to the Division for a refund or preference point restoration after completion of the regular drawing and prior to the secondary drawing application period will be made available for auto reissue. These licenses will be automatically reissued to the applicant next in line to draw the license, by residency, if the applicant has opted-in to accept auto reissued licenses for that hunt code and is eligible to receive the license. Applicants who receive an auto-reissued license will be charged the applicable license fee and, if the license was applied for as a first choice, all accumulated preference points for that species will become void. Applicants who opt-out of the auto-reissue process for that hunt code will be skipped and will not be automatically reissued the license. Licenses that are still remaining after the auto-reissue process is complete will be made available for

application in the secondary drawing.

- b. All limited licenses surrendered, unpaid for by the payment deadline, or returned to the Division for a refund or preference point restoration after completion of the secondary drawing and prior to the start of leftover sales will be made available for auto-reissue. These licenses will be automatically reissued to the applicant next in line to draw the license, by residency, if the applicant has opted-in to accept auto reissued licenses for that hunt code and is eligible to receive the license. Applicants who receive an auto-reissued license will be charged the applicable license fee, and, if the license was applied for as a first choice in the regular drawing, all accumulated preference points for that species will become void. Applicants who opt-out of the auto-reissue process for that hunt code will be skipped and will not be automatically reissued the license. Licenses that remain after the auto-reissue process is complete will be made available for purchase through the leftover license list and will not require the use of preference points.
 - c. All limited licenses surrendered or returned to the Division for a refund or preference point restoration after the start of leftover sales and with a season start date two weeks or more from the date of the return, will be made available for auto-reissue. These licenses will be automatically reissued to the applicant next in line to draw the license, by residency, if the applicant has opted-in to accept auto reissued licenses for that hunt code and is eligible to receive the license. Regular drawing applications will be processed prior to secondary draw applications. Applicants who receive an auto-reissued license will be charged the applicable license fee and, if the license was applied for as a first choice in the regular drawing, all accumulated preference points for that species will become void. Applicants who opt-out of the auto-reissue process for that hunt code will be skipped and will not be automatically reissued the license. Licenses that are still remaining after the auto-reissue process is complete will be made available for purchase through the leftover license list and will not require the use of preference points.
 - d. All limited licenses surrendered or returned to the Division for a refund or preference point restoration after the start of leftover sales and with a season start date less than two weeks from the date of the return, will not be made available for auto-reissue.
 - i. For all bighorn sheep, mountain goat, and moose licenses: Licenses will be reissued by the Division manually. If the next in line regular draw list applicant manually accepts one of the aforementioned first choice licenses that has been returned and reissued, all accumulated preference points for that species become void. If a license cannot be manually reissued to one of the first five people on the regular draw list, the license will become available for purchase using the leftover license list. Public Ranching for Wildlife licenses will not be reissued within fourteen (14) days of the start date for the respective hunt code or be available for sale off the leftover license list.
 - ii. For all deer, elk, pronghorn and bear licenses: Licenses will be available for purchase after the request has been processed using the current leftover license list.
12. Requests for refunds after the opening of the season will be accompanied by a signed affidavit that the license has not been used and circumstances precluded the licensee from being able to use the license. In addition, to be eligible for a refund the failure to apply for a refund less than thirty (30) days prior to the opening day of the season for which the license was issued cannot be due to a lack of diligence on the part of the licensee. The Division's License Administration Manager will render a decision on the refund request on behalf of the Division and the Commission and such decision shall constitute final agency action. Circumstances for which reimbursement will be considered shall be limited to:
- a. Extreme medical circumstances involving the license holder or a license holder's

immediate family member;

- b. Death of the license holder or death of a license holder's immediate family member;
- c. Active and reserve members of the United States armed forces whose military orders overlap with the season dates of the returned license; or
- d. Individuals on jury duty whose jury duty service overlaps with the season dates of the returned license.

B. Other Refunds

- 1. Refunds or antlerless licenses may be issued in any unit approved by the Division for the same species in the same year to hunters who harvest a deer, elk or moose in which Chronic Wasting Disease (CWD) is detected through the Division's CWD monitoring or testing programs. Where there is no open season or insufficient time remains to reasonably exercise the benefits of a license granted in the same year, the Division may issue the licensee an antlerless license for the same species in the following year in the same Game Management Unit where the CWD detected animal was harvested, or if antlerless hunting is not permitted in the applicable GMU, the Division may designate a substitute GMU. If the season closes prior to October 31 in the unit, the license will be valid through October 31. The provisions of this regulation shall apply to any hunter who harvests a moose after January 1, 2006 in which CWD is detected. Licenses issued pursuant to this provision shall not be considered part of the quota otherwise established by the Commission for that GMU.
- 2. Except for cases of Division error, no refunds shall be issued for any annual license, one-day, or five-day license, mountain lion license or preference point fee.

C. Restoration of Preference Points

- 1. License preference points used to obtain the license will not be restored except as follows:
 - a. No later than fourteen (14) days prior to the opening day of the applicable turkey season for turkey licenses or thirty (30) days prior to the opening day of the season for all other licenses, preference points may be restored to the pre-drawing level in lieu of a refund at the licensee's request.
 - b. Less than fourteen (14) days prior to the opening day of the applicable turkey season for turkey licenses or thirty (30) days prior to the opening of the season for all other licenses, the License Administration Manager may restore license preference points to the pre-drawing level and/or issue a monetary refund if any of the following circumstances prevent the license holder from exercising the intended benefits of the license:
 - 1. Extreme medical circumstances involving the license holder or a license holder's immediate family member;
 - 2. Death of a license holder's immediate family member;
 - 3. Active and reserve members of the United States armed forces whose military orders overlap with the season dates of the returned license; or
 - 4. Individuals on jury duty whose jury duty service overlaps with the season dates of the returned license.
 - c. Beginning with the 2025 draw season, when a license is not paid for by the payment deadline, the license privilege will be removed from the customer's account. Any points used to obtain the license will be restored to the pre-draw level.

- D.** Requests for refunds and/or restoration of license preference points due to extreme medical circumstances involving the license holder or a license holder's immediate family member, the death of a license holder's immediate family member, military orders that prevents the service member from exercising the intended benefits of the license or jury duty will be accompanied by sufficient evidence demonstrating that the license has not been used and circumstances precluded the licensee from being able to use the license. In addition, sufficient documentation is required to prove extreme medical circumstances, death, military orders or jury duty service.

E. Time Restriction

1. A refund or preference point restoration will be denied when the request is submitted more than thirty (30) days after the opening of the season for which the license was issued. Provided further that all time limits will be extended for active and reserve members of the United States armed forces whose military service requirements precluded their application for a refund or preference point restoration within said periods.
2. When additional documentation is requested and required by the Division to approve a refund and/or restoration of preference points request, the requestor will have thirty (30) days from the mailing date indicated on the notification letter to submit all the required documentation. If required documentation is not submitted prior to the 30-day deadline, the request will be considered closed and denied. No requests from the previous year will be considered after January 31, annually.

F. Director Disaster Relief Authority

1. When, in the determination of the Director, existing Parks and Wildlife regulations will have a significant negative impact following a natural disaster that displaces persons from their homes, or closes areas to public access and results in a time-critical demand for use of park resources or a complete (or near complete) loss of hunting opportunity, the Director is authorized to take emergency administrative actions, including, but not limited to:
 - a. Issuance of license fee refunds.
 - b. Restoration of preference points.
 - c. Exchange of big game hunting licenses for leftover or over-the-counter licenses.
 - d. Issue similar guaranteed licenses for another license year.
 - e. Suspension of length of stay camping limits on Division-owned or controlled properties.
 - f. Imposition of administrative requirements associated with the application for relief granted under this section.

#1671 – Sponsorships and Waivers

- A.** Area Wildlife Managers may provide state wildlife area access or entry licenses or permits issued pursuant to 33-4-102(3), C.R.S up to \$500 in value per fiscal year, per Area, to be used as sponsorships as a part of a fundraiser, promotion or marketing effort for local community supporting partners.
- B.** Any state wildlife area access or entry license or permit fee issued pursuant to 33-4-102(3), C.R.S. may be waived for Division sponsored education, outreach, volunteer or safety activities (events); for supporting partner activities (events) and research activities that directly support the Division; for official business by other governmental agencies conducted on state wildlife areas or for Division administrative purposes.

#1672 - Reimbursement for processing costs associated with CWD positive animals

A. Costs incurred for processing CWD positive animals

1. Hunters may request reimbursement from the Division for the reasonable costs actually incurred when processing any animal that:
 - a. receives a positive test result from a USDA approved contract laboratory using a USDA approved test;
 - b. is untestable as a result of any act or omission of the Division; or
 - c. is untestable for any reason and was required to be submitted for testing by regulation.
2. All requests for reimbursement shall be submitted on the forms provided by the Division and accompanied by receipts supporting the amount of reimbursement requested, except that reimbursement for processing shall be allowed without receipts in the amount of \$50. Reimbursement with receipts is limited to no more than \$100 per animal for private processing supplies or \$200 per animal for commercial processing except for moose. The maximum reimbursement for commercial processing for moose is \$250.00.

#1673 – Alcohol

- A. Upon recommendation of the park manager or area wildlife manager, the region manager may establish and enforce a temporary closure or restriction on any lands and waters under the supervision, administration, or jurisdiction of the Division to alcohol consumption when the region manager concludes that the closure or restriction is necessary to assure the health, safety and welfare of the public, users or staff, or protection of resources. The park manager or area wildlife manager and the region manager shall consider factors, including but not limited to, the effect or potential effect of alcohol consumption on employee and user safety, property appearance, atmosphere, noise levels, conflicts with other uses or users, the demand for law enforcement, the potential impacts to park or wildlife resources and the demand on Division staff.
- B. Whenever such temporary closure or restriction is instituted, the area(s) involved shall be posted indicating the nature and purpose of the closure.

ARTICLE VII - Reasonable Accommodations for Persons with Disabilities

#1680 – Reasonable Accommodations

- a. The Director shall have the authority to grant variances from the regulations adopted by the Parks and Wildlife Commission, including but not limited to manner of take and access accommodations, for the sole purpose of providing reasonable accommodations to persons with disabilities.
- b. Application for such accommodations must be made on a form available from and submitted to the Division at least 30 days prior to the requested effective date.
- c. Such applications will be reviewed on a case-by-case basis and supporting documentation may be required. If an accommodation is authorized, the applicant will be provided with a special permit listing the accommodation and any conditions of its use.
 1. When shooting from a motor vehicle is authorized, the permittee is authorized to discharge a firearm or release an arrow from a stationary motor vehicle only after all forward motion has ceased and the motor has been turned off or is incapable of forward motion. No shooting may be done from a public road.
- d. Permits are free of charge, and valid for the time period designated on the permit. Permits shall

be presented for inspection upon request by an officer of the Division.

- e. Hunters with permits must be accompanied by another person when necessary to ensure that the wildlife taken is retrieved and properly prepared for human consumption. Such person may dispatch wounded wildlife when so authorized as a condition of the permit.
- f. Persons provided with any accommodation under this regulation shall comply with all other applicable laws and regulations. Permits allow variances only from regulations specifically addressed and only in the manner and under the circumstances set forth therein.
- g. A service animal is defined as any dog that is individually trained to do work or perform tasks for the benefit of an individual with a disability including a physical, sensory, psychiatric, intellectual, or other mental disability. Other species of animals, whether wild or domestic, trained or untrained, are not service animals for the purposes of this definition. The work or tasks performed by a service animal must be directly related to the handler's disability. The crime deterrent effects of an animal's presence and the provisions of emotional support, well-being, comfort, or companionship do not constitute work or tasks for the purposes of this definition.

ARTICLE VIII - Backcountry Search and Rescue

#1681. Rules and Operating Procedures for use of funds credited to the BSAR fund pursuant to §33-1-112.5(1)(c)(II) C.R.S.

- a. The Backcountry Search and Rescue (BSAR) fund shall be administered by the Division of Parks and Wildlife (Division) pursuant § 33-1-112.5. C.R.S. and these regulations.

- b. **DEFINITIONS**

- 1. **Operational Expenses:** Are those reasonable costs incidental to BSAR activities including, but not limited to: fuel, operating costs, repair, maintenance and rental of motor vehicles, fixed-wing aircraft, helicopters, snowmobiles, boats, horses, generators and any other equipment necessary or appropriate for conducting BSAR activities; reimbursement of mileage at the appropriate state rate; meals and room rental for personnel and any other similar expenses. Operational expenses do not include any salary, overtime or stipend paid to any person permanently employed by a BSAR agency or political subdivision of the state. Operational expenses do not include indirect operating expenses, such as stand-by costs of vehicles and equipment owned by a unit of local government.
- 2. **Eligible agency:** Is a public or volunteer association providing specialized search and rescue services and resources authorized by a county sheriff or political subdivision.
- 3. **Eligible person:** Is a person in possession of: a current and valid Colorado Parks and Wildlife (CPW) hunting or fishing license; a vessel, snowmobile or off-highway vehicle currently registered through the Division of Parks and Wildlife or a current and valid Colorado Outdoor Recreation Search and Rescue Card.
- 4. **Eligible BSAR Incident:** Mobilization of persons or agencies with specialized search and rescue skills authorized by a County Sheriff or political subdivision of the State of Colorado for one or multiple purposes in section §33-1-102(1.3)(a),(b),(c), or (f), C.R.S.
- 5. **Eligible Reimbursement Request:** Request for payment of operational expenses of an eligible BSAR incident for an eligible person as certified by the sheriff of the county in which the incident took place.

- c. **LIMITATION OF PAYMENT OF REQUESTS FOR REIMBURSEMENT**

- a. The Backcountry Colorado Search and Rescue Fund will make no payment for BSAR expenses already paid or reimbursed by another source such as victims compensation,

private insurance, or donations made for the purpose of paying for a specific search. Donations of a general nature, not covering expenses of a specific search, shall be excluded from this limitation. Should an eligible agency receive payment from another source after having received payment from the BSAR Fund for the same BSAR Incident, that agency shall reimburse the BSAR Fund an amount equal to the amount of payment received from the other source.

- b. No reimbursement requests shall be paid for BSAR activities for which a river outfitter is liable pursuant to the provisions of section §33-32-108(2), C.R.S., unless such liability has been lawfully discharged.
- c. Searches for or recovery of property are not eligible incidents and are not reimbursable through the BSAR Fund.
- d. The Division shall not make payment when an insurance policy exists that will cover costs incurred. Payments may be used to pay insurance deductibles.
- e. The Division shall not make payment to victim's compensation, individuals, or eligible persons. Payments are solely made to eligible agencies for costs incurred by those agencies or subdivisions in performing BSAR incidents.
 - a. Costs may include those for contracted resources or expenses incurred and requested for reimbursement by volunteers.
- f. The BSAR Fund is not an insurance fund for eligible persons. It does not pay subjects. It does not cover medical expenses or medical transport fees. The use of an air ambulance as a search and rescue incident resource is not considered medical transport. All or portions of air ambulance bills considered elements of an "eligible search and rescue incident" as defined herein, are eligible for payment by the BSAR Fund.
- g. The Division will not make payment for the search, rescue, or recovery of persons engaged in illegal activities or persons eluding law enforcement authorities.

D. INCIDENT REIMBURSEMENT PROCEDURES:

- 1. General request provisions:
 - a. All reimbursement requests from eligible agencies having incurred reimbursable costs in a BSAR incident within the State of Colorado must be filed with the sheriff in the county where the BSAR activities occurred.
 - b. The sheriff shall be responsible for certifying and submitting the request for reimbursement to the Division, and for the proper distribution of BSAR Fund money to all agencies and political subdivisions approved for reimbursements.
 - c. All such reimbursement requests must be certified and submitted to the Division within 60 days of the completion of the search and rescue operation.
 - i. The 60-day filing requirement may be waived for good cause shown. Failure to submit a certified reimbursement request within 60 days of the completion of a BSAR operation because of other reasons not due to the filer's lack of diligence shall be considered "good cause."
 - ii. Reimbursement requests received after June 30 of any year will be processed in the following fiscal year and are subject to the funding levels of that fiscal year.
 - iii. As soon as practical after submission, the Division shall consider each reimbursement request. The Division shall review each request to determine if the

actual operating costs requested are reimbursable pursuant to statute, regulations and procedures. In no event shall any payment be made that is not authorized by statute.

2. Payment provisions:

- a. Upon receipt of a BSAR incident reimbursement request, the Division shall determine if all expenditures requested for reimbursement are eligible. If the Division determines all expenditures requested are reimbursable, it shall submit a request to the Division Accounting Office for issuance of a payment.
- b. Partially completed reimbursement requests or requests omitting required reimbursement information will be returned to the Sheriff.
- c. At the end of the State Fiscal Year, as funds are available, all eligible reimbursement requests for ineligible persons shall be paid pursuant to §33-1-112.5(6), C.R.S.

E. BACKCOUNTRY SEARCH AND RESCUE COUNCIL

1. The Backcountry Search and Rescue Council will be composed of the following members:
 - a. 3 - elected county sheriffs
 - b. 2 - members of Colorado Search and Rescue Association
 - c. 2 - employees of the Division
 - d. 2- At-large members
2. All council members must be appointed to the council by the Division Director
3. The Backcountry Search and Rescue Council shall meet to discuss reimbursements and the distribution of grant funds from the BSAR fund in accordance with §33-1-112.5, CRS, in conjunction with analysis and consultation with Division staff.
 - a. The Division Director, or their designee, will give final approval for all reimbursements and distribution of funds.

ARTICLE IX - Gray Wolf Injurious Hazing and Lethal Take Permits

#1690 - Procedures for Applying for and Appealing a Denied Gray Wolf Permit

- A. Applications to conduct activities requiring express authorization from the Division under state law, including Chapter W-10, #1000.A.11 or #1001.B or #1001.C, such as applications for authorization to injuriously or lethally take gray wolves, including retroactive authorization for take of wolves caught in the act of attacking livestock or working dogs, must be filed in the relevant CPW Area Office or via email at wolf.permits@state.co.us on an application form provided by the Division. The relevant CPW Area Office means the CPW office having administrative responsibility over some or all of the lands where the claimed wolf depredation at issue occurred, or is occurring, as shown on the Areas, Districts, and Office Locations map on the CPW website, available at https://cpw.state.co.us/learn/Maps/CPW_Districts.pdf.
- B. The Region Manager responsible for the lands identified in the application will review such an application promptly and after consulting with the Director of the Division, will issue a written notice of the action taken by the agency. If the application for authorization is denied, the grounds therefor shall be given to the applicant ("Region Manager Decision"). The giving of such notice shall be via mail to the same address as shown on the application. Such notice will be provided via email if the applicant provided an email address on their permit application. If mailed, the

Region Manager Decision must contain a certificate of mailing evidencing when the decision was mailed to the applicant and is effective upon mailing. If emailed, the Region Manager Decision is effective upon transmission by the Division.

- C. Subject to paragraph G below, if the application is denied in the Region Manager Decision, the applicant may appeal the Region Manager Decision to the Commission by filing a written notice of appeal with the Commission within 45 days from the effective date of the Region Manager Decision. The notice of appeal must be sent to “CPW Wolf Permit Appeals – Attention Commission Appeals” 6060 Broadway, Denver, CO 80216. If a timely appeal is not made to the Commission, the Region Manager Decision shall become final.
- D. The notice of appeal must contain contact information for the applicant, state the legal and factual reasons why the application should be granted, and identify the relief sought by the applicant. The notice of appeal must contain all documents and information necessary for the applicant to meet their burden of proof.
- E. The Commission will review the appeal at its next regularly scheduled meeting and issue a written decision (“Commission Decision”). Provided, however, the applicant may request an earlier hearing. The Division Director or their designee will notify the applicant of the Commission Decision in the same manner as provided for in the Region Manager Decision. If mailed, the Commission Decision is effective upon mailing. If emailed, the Commission Decision is effective upon transmission by the Division Director or their designee. At the time of filing the appeal, the applicant may provide other written materials in support of their appeal but, unless ordered by the Commission Chair, oral testimony will not be accepted.
- F. The Commission Decisions constitute final agency action.
- G. Nothing in these rules enables any person to file a notice of appeal over a Region Manager Decision denying a permit application seeking retroactive authorization for take of gray wolves caught in the act of attacking livestock or working dogs pursuant to chapter W-10, #1001.B; such a decision constitutes final agency action subject only to appeal as authorized by § 24-4-106, CRS (judicial review).

03/05/2025

Basis and Purpose

Chapter W-16 - Procedural Rules

Basis and Purpose:

The statements of basis and purpose for these regulations can be obtained from the Colorado Division of Parks and Wildlife, Office of the Regulations Manager by emailing dnr_cpw_planning@state.co.us or by visiting the Division of Parks and Wildlife headquarters at 6060 Broadway, Denver, CO, 80216.

The primary statutory authority for these regulations can be found in § 24-4-103, C.R.S., and the state Wildlife Act, § 33-1-101 to 33-6-209, C.R.S., specifically including, but not limited to: § 33-6-106, C.R.S. and §33-1-106(1)(a), C.R.S.

EFFECTIVE DATE - THESE REGULATIONS SHALL BECOME EFFECTIVE MAY 1, 2025 AND SHALL REMAIN IN FULL FORCE AND EFFECT UNTIL REPEALED, AMENDED OR SUPERSEDED.

APPROVED AND ADOPTED BY THE PARKS AND WILDLIFE COMMISSION OF THE STATE OF COLORADO ON THIS 5TH DAY OF MARCH 2025.

APPROVED:
Dallas May
Chair

ATTEST:
Karen Bailey
Secretary

Basis and Purpose:

Draw changes

At the May 2023 Parks and Wildlife Commission Meeting, the Commission directed staff to form a Draw Process Working Group (DWG or group). The purpose of the group was to reduce complexities within Colorado's draw system and address preference point issues, while keeping in mind biological and sociological concerns.

A DWG was formed which consisted of two Commissioners, eight members of the public (residents and nonresidents), and seven members of staff (two non-voting). The DWG held five meetings between October 2023 and May of 2024 to draft recommendations for the agency and Commission to consider. The focus topics included draw methods for the Primary and Secondary draws, preference points, the weighted draw for sheep, goat and moose, and the reissue process. Three Commission workshops also took place between January 2024 and July 2024 on these topics. All recommendations for change were discussed and considered by the Commission in a two-step policy approval process (November 2024 and January 2025). Except where indicated, adopted policies/regulations will not be implemented until the 2028 draws in order to allow time for draw reprogramming. These policies will also be re-examined every ten years, by implementing a Draw Season Structure, similar to the Big Game Season Structure. This cycle will run through the 2032 draws to allow for five years of implementation before the next cycle begins.

Reissues

The group focused on improving the customer and staff experience, ensuring a fair distribution of licenses, and wanting to see as many licenses issued/used as possible. The group unanimously agreed to automate the reissue process and use the same process for any license that is surrendered, not paid for by the payment deadline, or returned. Licenses will automatically be reissued to the applicant next up in line in the draw order (by residency) based on the next up report, and would require the use of preference points for first choice licenses from the primary draw. Automatic reissue will stop two weeks prior to the start of the season listed on that license.

When applying for licenses in the primary draw, customers will have the choice to opt-in/opt-out to being on the automated reissue list. If the customer opts-out, they will be skipped over and not issued the license if it is returned. The customer will also be skipped over if they no longer can legally possess the license. For example, if the customer drew a list A elk license in the secondary draw before the list A elk license they applied for in the primary draw was reissued. If a customer opted-in, but circumstances changed and they no longer want the opportunity to be reissued the license, they can opt-out at any time before being issued the license. When a customer opts-in to the automatic reissue, they agree to be charged for the license when it is put on their account and agree to forfeit all the preference points they hold for that species for first choice licenses from the primary draw. If there is no one to auto-reissue a returned license to (i.e. there are leftovers for that hunt code or no one opted in for reissue of that hunt code), then the returned license will be released for sale using the current reissue/leftover process. Additionally, if a license is returned during the two weeks prior to the start of the season, it will not be auto-reissued, but instead will also be reissued using our current reissue/leftover process. Auto-reissues will also be paused during the secondary draw application period to ensure bag limit rules are enforced. Auto-reissues will not apply to any licenses prior to the 2028 draw.

Fail to pay

The group also discussed the current fail to pay policies because the majority of the group found those existing policies to be too strict. When CPW would reverse any license not paid for by the payment deadline they would not reinstate the customer's preference points used to draw that license. The group agreed that if a customer's payment fails to go through during the primary or secondary draw, and the customer fails to pay for the license before the respective payment deadline, that customer should lose

the license, but felt that their points should be restored to the pre-draw level. This allows the license to be quickly reissued to another customer through the auto-reissue process and allows the customer who lost the license, to potentially draw the license again in a future year (without losing all their points). If a license is auto-reissued to a customer and payment fails, the customer would get a 24 hour warning notification to pay the balance before moving to the next customer in line. In summary, the entire auto-reissue process would be handled by the license system with no manual staff time necessary. In addition, with the decision to auto-reissue licenses, the concern with bots (software programs developed to help clients quickly detect and purchase returned/ reissued licenses giving them a purchasing advantage over the average human customer) greatly diminishes. Highly desirable licenses would be issued to the next person in line instead of going to the weekly leftover license release list, thus preventing these licenses from going on sale to the public online where bots could compete.

The statements of basis and purpose for these regulations can be obtained from the Colorado Division of Parks and Wildlife, Office of the Regulations Manager by emailing dnr_cpw_planning@state.co.us or by visiting the Division of Parks and Wildlife headquarters at 6060 Broadway, Denver, CO, 80216.

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